

Mohd. Afaq v. U.P. Power Corporation Limited

Allahabad High Court, Lucknow Bench · Division Bench · 12 March 2025 · 2025:AHC-LKO:15274-DB · Writ-C No. 2447 of 2025 · **Writ disposed; connection application with indemnity bond to be considered within three weeks.**

HEADNOTE

A tenant cannot be refused electricity merely because a landlord-tenant dispute is pending. On an application with an indemnity bond under clause 4.4 of the U.P. Electricity Supply Code, 2005, the licensee must consider the request in accordance with law within three weeks, after verifying possession, unless a legal impediment is communicated in writing. The order does not decide title or possession.

FACTUAL SUMMARY

The petitioner, Mohd. Afaq, sought a writ from the Lucknow Bench for grant of an electricity connection from U.P. Power Corporation Limited. He claimed to be a tenant of the premises in question. Opposite party no. 4 was the landlord. The petitioner alleged a dispute with the landlord and that proceedings between them were pending. Notice to the landlord was dispensed with in view of the order proposed to be passed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupier connection on indemnity bond

HOLDING

A tenant cannot be deprived of an electricity connection only because a landlord-tenant dispute is pending, unless there is some other impediment, subject to an indemnity bond under clause 4.4 of the U.P. Electricity Supply Code, 2005. If the occupier applies with an indemnity bond, the licensee shall consider the application in accordance with law within three weeks of submission, inform any legal impediment in writing, and verify that the applicant is in possession; the order does not decide title or possession. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE OR POSSESSION AS BETWEEN THE TENANT AND THE LANDLORD

The order is not to affect any pending question of possession or title; possession is only a prerequisite to be verified for supply. ¶ 5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Seema Mansoor v. U.P. Power Corporation Ltd.</i> 2014 (6) ADJ 672			3	Referred
<i>Shri Chandu Khamaru v. Naraya Malik</i> (2011) 12 SCC 314			3	Referred